

24NNCV02870 24NNCV02870

County: los-angeles

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Case Number: 24NNCV02870 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Further Response to Requests
for Production; Request for Sanctions

Hearing Date: 8/21/26

CASE NO.: 24NNCV02870

CASE NAME: Yesayan v. AVB Studio City
III-A, LP

Moving Party: Plaintiff Silva Yesayan

Responding Party: Defendant AVB Studio City
III-A, LP

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is an action arising from habitability concerns, conditions, water intrusion, and eviction. On July 12, 2024, plaintiff Silva Yesayan (Plaintiff) filed the initial Complaint against defendant AVB Studio City III-A, LP (Defendant). On October 7, 2024, Plaintiff filed the First Amended Complaint alleging breach of implied warranty of habitability, breach of covenant of quiet enjoyment, negligence, private nuisance, fraudulent/bad faith eviction, wrongful eviction, breach of contract, intentional infliction of emotional distress, abuse of legal process, and declaratory relief.

On August 5, 2026, Plaintiff filed the instant motion seeking to compel further responses to Requests for Production (RPDs) served on Defendant. On August 12, 2026, Defendant filed an opposition. On August 17, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing,” the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see *Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further
Production of Documents

“On receipt of a response to a demand for inspection, copying, testing,

or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... (1) [a] statement of compliance with the demand is incomplete[;] ... (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

“A motion under subdivision (a) shall: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; (2) be accompanied by a meet and confer declaration” and (3) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2031.310(b).)

If a court determines the scope of discovery imposes a burden, causes great expense or is intrusive, and such outweighs the likelihood that the discoverable information sought will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

DISCUSSION

Timeliness

Here, verified responses to request for production were provided by Defendant on July 22, 2026. (Mot., Bakhdanyan Decl., Exh. C.) The instant motion was filed by Plaintiff on August 5, 2026, 13 days after the issuance of responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Separate Statement

California Rules

of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiff filed a separate statement in compliance with rule 3.1345(a) for the noticed motion. Accordingly, this requirement is satisfied

Meet and Confer

A

motion to compel further responses must be accompanied by a meet and confer

declaration “showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here,

Plaintiff declares that they have attempted to engage in meet and confer efforts by sending two detailed meet and confer letters but Defendant responded only in writing declining to provide amended responses and did not meet and confer. (Bakhdanyan Decl., ¶¶ 3, 5-6.) Defendant does not acknowledge having engaged in meet and confer efforts.

Neither party

confirms whether meet and confer efforts were conducted in good faith if at all. The parties are admonished to comply with meet and confer requirements in the future; however, the Court will address the motions on its merits.

Compel Further Production of
Documents

Plaintiff

moves the Court to compel Defendant to produce further responses to RPD items 21-24 and 28-38 arguing that Defendant's responses are incomplete. (Mot., pp. 2-3.) Items #21-24 and #28-31 seek incident, maintenance, complaint, insurance-fact, inspection, repair, photograph, and relocation records at the subject complex and Items #32-38 seek applicable policies and records identifying similar habitability related claims or tenancy actions.

Defendant responded

to RPDs #21-24, 28, 30-31, and 33-38 by asserting objections only. (Mot., p. 3; Separate Statement (SS), pp. 1-4, 7-14.) Plaintiff argues that Defendant must provide further substantive responses to the relevant portions and log any actually withheld privileged material. (Ibid.)

Plaintiff

responded to RPD #29 stating they would provide the documents at the time of deposition and responded to RPD #32 similarly adding that the documents would be produced under stipulated protective order. (Mot., p. 3; SS, pp. 7-9.) Defendant argues that the documents were not produced, Defendant did not provide a definite production date, and the responses were not verified. (Mot.,

p. 3.) Plaintiff argues that Defendant should be compelled to provide further responses. (SS, pp. 7-9.)

Defendant argues

that this is a perfect example of a “fishing expedition” and argues that Plaintiff goes beyond proper scope of discovery in seeking documents pertaining to any type of water intrusion, water discharge event, habitability complaint, lawsuit, termination of tenancy, or unlawful detainer, spanning hundreds of residents, properties, and units over five years. (Opp., pp. 1, 4.) Further, Defendant argues that Plaintiff has sought identical information via at least two other recent methods of discovery, both of which are the subject of pending motions (Opp., p. 1.) As a result, Defendant argues that this inquiry is overburdensome and a tremendous undertaking. (Ibid.)

In reply,

Plaintiff argues that Defendant has only confirmed non-compliance with the RPDs. (Reply, pp. 2, 7-8.) Plaintiff reiterates that the information sought is relevant and tied to the alleged conduct. (Reply, pp. 3-4.) Plaintiff argues that they cannot obtain the information sought through alternative channels because Defendant controls the records being requested. (Reply, p. 5.) Lastly, Plaintiff argues that Defendant describes ordinary electronic discovery tasks, not undue burden supporting denial of the instant motion. (Reply, p. 6.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) Here, the RPDs were served on Defendant on June 20, 2026, and due July 20, 2026. (Bakhdanyan Decl., ¶ 3.) However, responses were not provided until July 22, 2026. (RPD SS, Exh. B.) This is beyond the 30-day statutory deadline, and any objections are waived pursuant to Code Civil Procedure section 2031.290.

Here, Plaintiff

seeks evidence concerning maintenance, complaints, insurance-claim, inspections, repairs, photographs, relocation records, and habitability and tenancy actions at the complex. (Bakhdanyan Decl., ¶ 2, Exh. A.) However, the FAC alleges habitability issues due to water intrusion from sewage pipes in Plaintiff's single unit. (FAC, ¶¶ 16-18.) “[E]vidence is “relevant” if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (Glenfed Dev. Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117.) Plaintiff has not established that the evidence of property wide complaints, tenancy actions, and records of any condition made

during the past five years is relevant to a Complaint based on a single unit, and perhaps even adjacent units. Thus, the Court finds that the scope of RPD Items #21-24 and 28-38 are overbroad, burdensome, and Plaintiff has not demonstrated good cause for compelling further response.

Accordingly, the motion to compel further is DENIED.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff request

imposition of sanctions in the amount of \$2,685 against Defendant consisting of \$2,625 in attorney’s fees reflecting 7.5 hours meeting and conferring, reviewing Defendant’s objections, preparing the instant motion, declaration, and proposed order at a rate of \$325 per hour, plus a \$60 filing fee. (Bakhdanyan Decl., ¶¶ 10-12.)

Here, the Court will not award sanctions as the motion to compel further is denied.

CONCLUSION

AND ORDER

Plaintiff Silva Yesayan's Motion to Compel
Further Response to Requests for Production is DENIED.

Plaintiff's request for sanctions is DENIED.

Motion to Quash Subpoena

Hearing Date: 8/21/26

CASE NO.: 24NNCV02870

CASE NAME: Yesayan v. AVB Studio City
III-A, LP

Moving Party: Defendant AVB Studio
City III-A, LP

Responding Party: Plaintiff Silva Yesayan

Notice: Sufficient

Ruling: GRANT.

BACKGROUND

This is an action arising from habitability concerns, conditions, water intrusion, and eviction. On July 12, 2024, plaintiff Silva Yesayan (Plaintiff) filed the initial Complaint against defendant AVB Studio City III-A, LP (Defendant). On October 7, 2024, Plaintiff filed the First Amended Complaint alleging breach of implied warranty of habitability, breach of covenant of quiet enjoyment, negligence, private nuisance, fraudulent/bad faith eviction, wrongful eviction, breach of contract, intentional infliction of emotional distress, abuse of legal process, and declaratory relief.

On July 17, 2026, Plaintiff filed the instant motion to quash subpoenas, or limit the scope, for deposition of (1) the Custodian of Records for the Los Angeles Housing Department (the City), and (2) the Custodian of Records for the County of Los Angeles Department of Public Health (the County).

On July 29, 2026, Defendant filed an opposition to the motion. No reply has been filed as of August 18, 2026.

LEGAL STANDARD

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion ... or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. (Code Civ. Proc., § 1987.1, subd. (a).)

A motion to quash production of documents pursuant to a deposition subpoena must be accompanied by a separate statement setting forth the inspection demand at issue and the factual and legal reasons why production should not be compelled. (See Cal. Rules of Court, rule 3.1345 subd. (a)(5).)¿

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition for production of business records.¿ (Code Civ. Proc., § 2020.010.)¿

DISCUSSION

Defendant moves the court for an order quashing two subpoenas served to the City and the County and an imposition of sanctions in the amount of \$3,300 to compensate Defendant for needing to file this motion. (Mot., p. 1.)

Motion to Quash Subpoenas

Defendant argues that the scope of Plaintiff's discovery inquiries are overbroad and seek to uncover property wide complaints of any condition made during the past five years whereas the instant action focuses only on one unit. (Mot., pp. 3-4.) Defendant argues that Plaintiff seeks irrelevant information that does not have any

tendency to prove or disprove any disputed fact that is of consequence to the action. (Mot., p. 5.) Moreover, Defendant argues that Plaintiff does not make any allegations about habitability issues in the complex or common areas yet seeks information about other residential units and common areas. (Mot., p. 7.) Defendant argues that the scope of discovery is therefore intrusive, burdensome, and outweighs the likelihood that the information will lead to admissible evidence. (Ibid.) Lastly, Defendant argues that sanctions are warranted in the amount of \$3,300. (Mot., p. 9.)

In opposition, Plaintiff

argues that the First Amended Complaint (FAC) alleges that Defendant failed to maintain the property in a habitable condition, breached the covenant of quiet enjoyment, acted negligently, maintained a nuisance, and wrongfully and fraudulently evicted Plaintiff after she asserted her rights. (Opp., pp. 2, 5.) Plaintiff argues that evidence of prior governmental complaints, inspections, or notices of violations are directly relevant to these claims. (Ibid.) Plaintiff argues that the records requested through subpoena are maintained by government agencies in the ordinary course of business and may establish Defendant's knowledge of violations and recurring habitability concerns. (Opp., pp. 2, 5-6.) Further, Plaintiff argues that discovery is meant to give parties the fullest possible knowledge of the issues, and discovery statutes must be construed broadly in favor of disclosure. (Opp., p. 3.) Plaintiff argues that discoverability does not equate to admissibility, and Defendant's argument regarding inadmissible evidence is misplaced at this stage. (Opp., p. 4.) Further, Plaintiff argues that Defendant does not explain why the 5-year temporal scope of records requested is excessive. (Opp., pp. 7, 9.) Thus, Plaintiff argues that Defendant has not carried their burden in establishing that the information sought is overbroad or burdensome, and request imposition of sanctions against Defendant in the amount of \$4,200. (Opp., pp. 12-13.)

Here, Defendant

seeks quashing of subpoenas to the City and the County. (Yamabe Decl., ¶¶ 13-15.) Alternatively, Defendant asks the Court to reduce the scope and eliminate Requests for Production (RFAs) numbers 39 and 40 issued to the City, and numbers 41, 42, and 43 issued to the County. (Separate Statement pp. 1-2.) Plaintiff seeks evidence from government agencies concerning Defendant's knowledge of prior habitability complaints, conditions, inspections, and maintenance practices. (Bakhdanyan Decl., ¶¶ 4, 8.) However, the FAC alleges habitability issues due to water intrusion from sewage pipes in Plaintiff's unit. (FAC, ¶¶ 16-18.) "[E]vidence is 'relevant' if it might reasonably assist a party in

evaluating its case, preparing for trial, or facilitating a settlement.” (Glenfed Dev. Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117.) Plaintiff has not established that the evidence of property wide complaints of any condition made during the past five years is relevant to a Complaint based on a single unit, and perhaps even adjacent units. Thus, the Court finds that the scope of the subpoenas issued is overbroad and burdensome.

Accordingly, the motion to quash subpoena is GRANTED.

Sanctions

When granting a motion to quash, “the court may in its discretion award the amount of the reasonable expenses incurred in making...the motion, including reasonable attorney’s fees, if the court finds the motion was made...without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2(a).)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendant requests

imposition of sanctions in the amount of \$3,300 against Plaintiff reflecting 12 hours meeting and conferring, preparing the instant motion, declaration, and anticipated time spent reviewing an opposition and drafting a reply at a rate of \$275 per hour. (Yamabe Decl., ¶¶ 19-23.)

Here, the Court in its discretion will reduce the fee to \$550 in attorney’s fees reflecting 2.0 hours preparing the instant motion at a rate of \$275 per hour.

CONCLUSION

AND ORDER

Defendant AVB

Studio City III-A, LP's motion to quash subpoena is GRANTED.

Defendant's

request for sanctions is GRANTED in the amount of \$550 to be paid by Plaintiff within 15 days from this ruling.

MOVING PARTY for

this motion shall

submit a proposed order consist with these rulings within five days and provide notice.